



A COMMUNITY OF CHOICE

Planning and Development Department

2101 O'Neil Avenue, Suite 202, Cheyenne WY 82001
(Phone) 307-637-6282 (Fax) 307-637-6366

MEMO

To: Honorable Mayor Patrick Collins and Members of the City Council
From: Seth Lloyd
Subject: PUDC-24-51 | 3421 Gregg Way – Zoning Map Amendment
Date: April 8, 2024

Background:

The item for consideration is a *Zoning Map Amendment (zone change)*. This is approved by Ordinance.

The proposed Governing Body review schedule is as follows:

- Introduction and Referral 04/08/2024
- Public Services Committee 04/16/2024
- Second reading 04/22/2024
- Public Services Committee 05/07/2024
- Third and final reading 05/13/2024

Planning Commission Recommendation:

The Planning Commission heard this item at their April 1, 2024 meeting and recommended the Governing Body approve this application by a 4 to 1 vote.

The Planning Commission Staff report is attached and has not been changed.

Attachments:

1. Ordinance
2. Planning Commission Staff Report

ORDINANCE NO. _____

ENTITLED: "AN ORDINANCE AMENDING THE OFFICIAL ZONING MAP OF THE CITY OF CHEYENNE CHANGING THE ZONING CLASSIFICATION FROM MUB MIXED-USE BUSINESS EMPHASIS TO CB COMMUNITY BUSINESS FOR LAND LOCATED AT LOT 2, BLOCK 1, Q-B SUBDIVISION."

BE IT ORDAINED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING:

Section 1. That the owner(s) of the property described herein has (have) applied for a zoning map amendment for said property in accordance with Section 2.2.1, Zoning Map Amendment, of the Cheyenne Unified Development Code ("UDC").

Section 2. That on April 1, 2024, the City of Cheyenne Planning Commission conducted a public hearing, reviewed the proposed zoning map amendment that is the subject of this ordinance, and recommended approval of said zoning map amendment.

Section 3. That the Governing Body of the City of Cheyenne finds that the zoning map amendment that is the subject of this ordinance meets the criteria specified in Section 2.2.1.d of the UDC.

Section 4. That, in accordance with Section 2.2.1, Zoning Map Amendment, Section 5.1.2, Zoning Districts Established, and Section 5.1.3, Official Zoning Map, of the UDC, the aforementioned application is hereby approved, and the zoning classification of the real property described as Lot 2, Block 1, Q-B Subdivision, Cheyenne, Wyoming, is hereby changed to CB Community Business.

Section 5. That the City Engineer is hereby authorized and directed to alter and amend the Official Zoning Map as described in Section 5.1.3 of the UDC to comply with the zoning map amendment as described in Section 4 above when this ordinance takes effect in accordance with Section 7 below.

Section 6. Sections, paragraphs, sentences, clauses, and phrases of this ordinance are severable. If any section, paragraph, sentence, clause, or phrase of this ordinance is declared unconstitutional, such unconstitutionality shall not affect any of the remaining sections, paragraphs, sentences, clauses, and phrases.

Section 7. That this ordinance shall be in full force and effect upon its approval and publication.

FIRST READING: _____

SECOND READING: _____

THIRD AND FINAL READING: _____

PATRICK COLLINS, MAYOR

(SEAL)

ATTEST:

KRISTINA F. JONES, CITY CLERK

Published: _____
Wyoming Tribune-Eagle



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CITY OF CHEYENNE PLANNING COMMISSION

APRIL 1, 2024

STAFF REPORT

FILE: UDC-24-51: 3324 Gregg Way Zone Change

REQUEST: A request to rezone approximately 1.23 acres of land from MUB Mixed-use Business to CB Community Business.

LOCATION: North of Dell Range Boulevard between Ridge Road and College Avenue

AGENT: Casey Palma

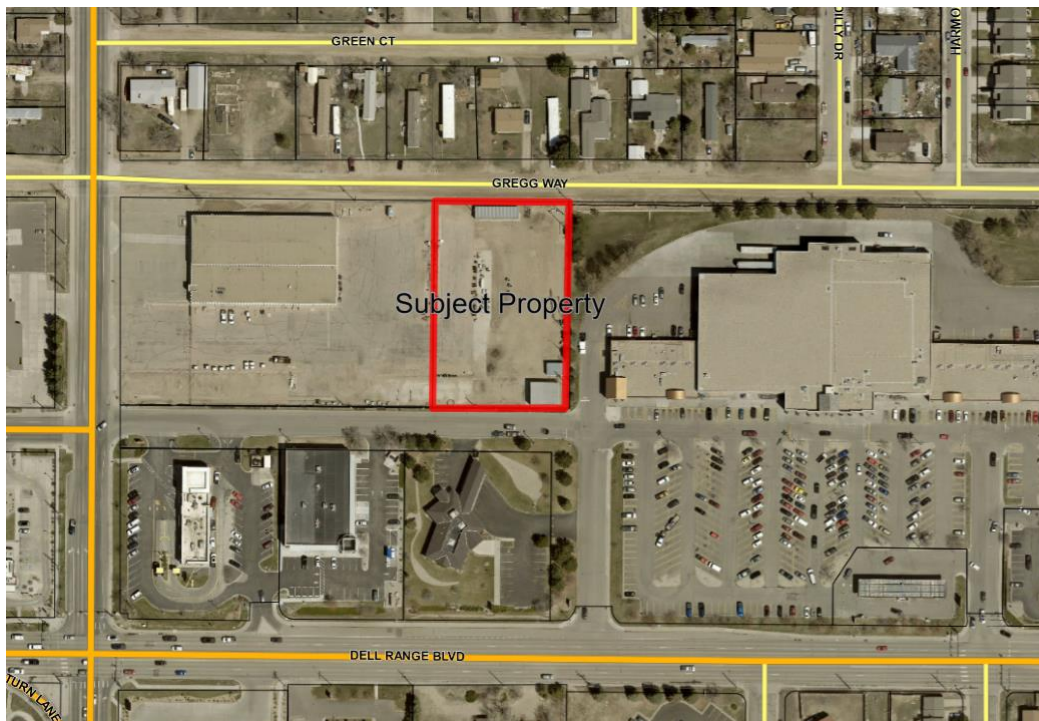
OWNER: Cheyenne Real Estate LLC Et Al

ZONING: MUB Mixed-use Business

FUTURE LAND USE: Mixed-use Commercial

PURPOSE: Rezoning to CB to allow automobile service station as a use-by right and with fewer design standards.

PREPARED BY: Seth Lloyd, Senior Planner



RECOMMENDED MOTION:

Move to **approve** the rezoning of Lot 2, Block 1, Q-B Subdivision to CB Community Business, noting that the project meets the review criteria for approval.

APPLICABLE CITY CODE SECTION(S) AND PLANS:

- UDC 2.2.1 Zoning Map Amendment
- UDC Article 5
- PlanCheyenne

BACKGROUND:

This zone change application proposes changing the zoning from MUB Mixed-use Business to CB Community Business. The land is currently an outdoor storage area for a utility company. The purpose of the proposed zone change is to allow for automobile service use as a use-by-right with more appropriate design standards.

Shortly after the adoption of the UDC, Staff identified various areas of the community as “mis-zoned”. The UDC kept the same zone names and zone locations as Title 17, but the intent and applicability had changed significantly, and some areas of the community carried forward zones for their properties which were not optimal based on the new UDC language. One of the two areas specifically identified for change in the 2014 UDC annual review was the King Soopers shopping center. It was stated then that the entire area should be zoned CB, not MUB. Unfortunately, Staff never had the time or resources to do a comprehensive rezoning of the entire community, electing to go with potential ‘spot zoning’ in the interim to address properties where issues arise.

SURROUNDING LAND USE AND ZONING:

	Future Land Use Designation	Zoning District	Land Use
Subject Site	Mixed-use Commercial	MUB Mixed-use Business	Outdoor storage
North	Urban Residential	County MR	Single-family detached residential
South	Mixed-use Commercial	MUB	Commercial Service
East	Mixed-use Commercial	MUB	Commercial Service
West	Mixed-use Commercial	MUB	Outdoor Storage, Limited Industrial, Office

ANALYSIS OF APPLICATION CONFORMANCE WITH REVIEW CRITERIA:

Should the Planning Commission wish to recommend approval of the Zoning Map Amendment, the Commission must make the following findings required in UDC 2.2.1.d. A detailed analysis is below:

1) The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan. (UDC 2.2.1.d.1)

The Future Land Use designation for this property is Mixed-use Commercial. The Mixed-Use Commercial category is intended to promote a range of land uses, with primarily retail, office, light industrial, and live/work designed as an “activity center”. Parks, plazas and/or open space should also be part of the core of Mixed-Use Commercial areas.

Policies in the comprehensive plan encourage commercial development near activity centers, and the intersection of Dell Range and Ridge is considered an activity center by the plan.

The proposed zone change for the subject property **complies** with this review criterion.

2) The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas; (UDC 2.2.1.d.2)

There is CB zoning to the southeast of this property. The surrounding area consists of a mix of different residential and service uses. The CB zone would be compatible with the nearby properties as it is a commercial zone with slightly different standards than the MUB zone.

The proposed zone change for the subject property **complies** with this review criterion.

3) The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (UDC 2.2.1.d.3)

The surrounding area better matches the expected development patterns of CB zoning. The MUB zone requires buildings to be set closer to the streets and have a certain amount of windows and other building design elements, whereas the CB zone pushes buildings further from the street and requires fewer building design elements. The CB zone is also meant for more vehicle-oriented areas which would be the case for Dell Range, Ridge, and College.

The proposed zone change for the subject property **complies** with this review criterion.

4) The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (UDC 2.2.1.d.4)

This is in an area with an existing street network. The CB zone generally anticipates larger blocks and is better suited to the likely development patterns in this situation.

The proposed zone change for the subject property **complies** with this review criterion.

5) The ability of the application to support the Intent and Applicability statements of the proposed zoning district and achieve the Design Objectives of any specific standards. (UDC 2.2.1.d.5)

The CB District is intended for Retail, Employment, Service and Civic uses that may serve a number of residential neighborhoods or other districts in meeting daily needs, discretionary needs, or other business functions. The district regulations are designed to encourage these uses, while also protecting the abutting and nearby areas.

The CB District is applicable in areas where moderate- or large-scale business uses are appropriate, specifically larger Mixed-use Commercial Activity Centers, Community/Regional Activity Centers, or Community Business areas of the Comprehensive Plan.

This property is close to the Ridge Road and Dell Range intersection and the existing development is more low-density, spread-out – better meeting the Intent and design objectives of the CB zone, than those of the MUB zone.

The proposed zone change for the subject property **complies** with this review criterion.

6) The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options if any specific development proposed in association with the application is not executed after approval. (UDC 2.2.1.d.6)

The specific proposal for this project is a automobile repair facility. However, if that project is not executed after approval, the CB zone offers a wide variety of potential auto-oriented uses at this site (including apartments).

The proposed zone change for the subject property **complies** with this review criterion.

7) The review and recommendations of other reviewing bodies. (UDC 2.2.1.d.7)

No major concerns were raised by other reviewing bodies.

The proposed zone change for the subject property **complies** with this review criterion.

8) Whether the application will harm the public health, safety, or general welfare. (UDC 2.2.1.d.8)

City staff is satisfied that this proposed zone change would not adversely affect the public health, safety, or general welfare.

The proposed zone change for the subject property **complies** with this review criterion.

CONFORMANCE WITH APPLICABLE PLANS:

The project is located in an area covered by the following plans:

- PlanCheyenne

Conformance with PlanCheyenne is covered by review criterion 1.

STAFF REVIEW:

Through the review process no comments were received.

CONCLUSION:

Staff is satisfied that the application meets the review criteria set forth in UDC 2.2.1.(d). The proposed CB zone is consistent with the comprehensive plan and is appropriate based on the existing conditions and potential development patterns for the area.

ALTERNATIVES:

1. Recommend approval of the zoning amendment as submitted by the applicant (**Staff Recommendation**).
2. Recommend approval of the zoning amendment subject to conditions or modifications.
3. Recommend denial of the zoning amendment based on findings of denial. The Planning Commission must conclude that the project does not meet all the review criteria. As part of the motion, findings for denial must be stated.
4. Postpone the zoning amendment until issues identified during the meeting can be resolved.

General Information Regarding Alternatives:

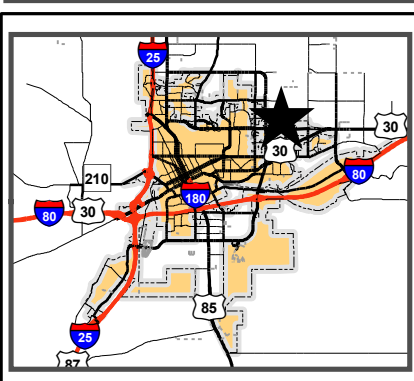
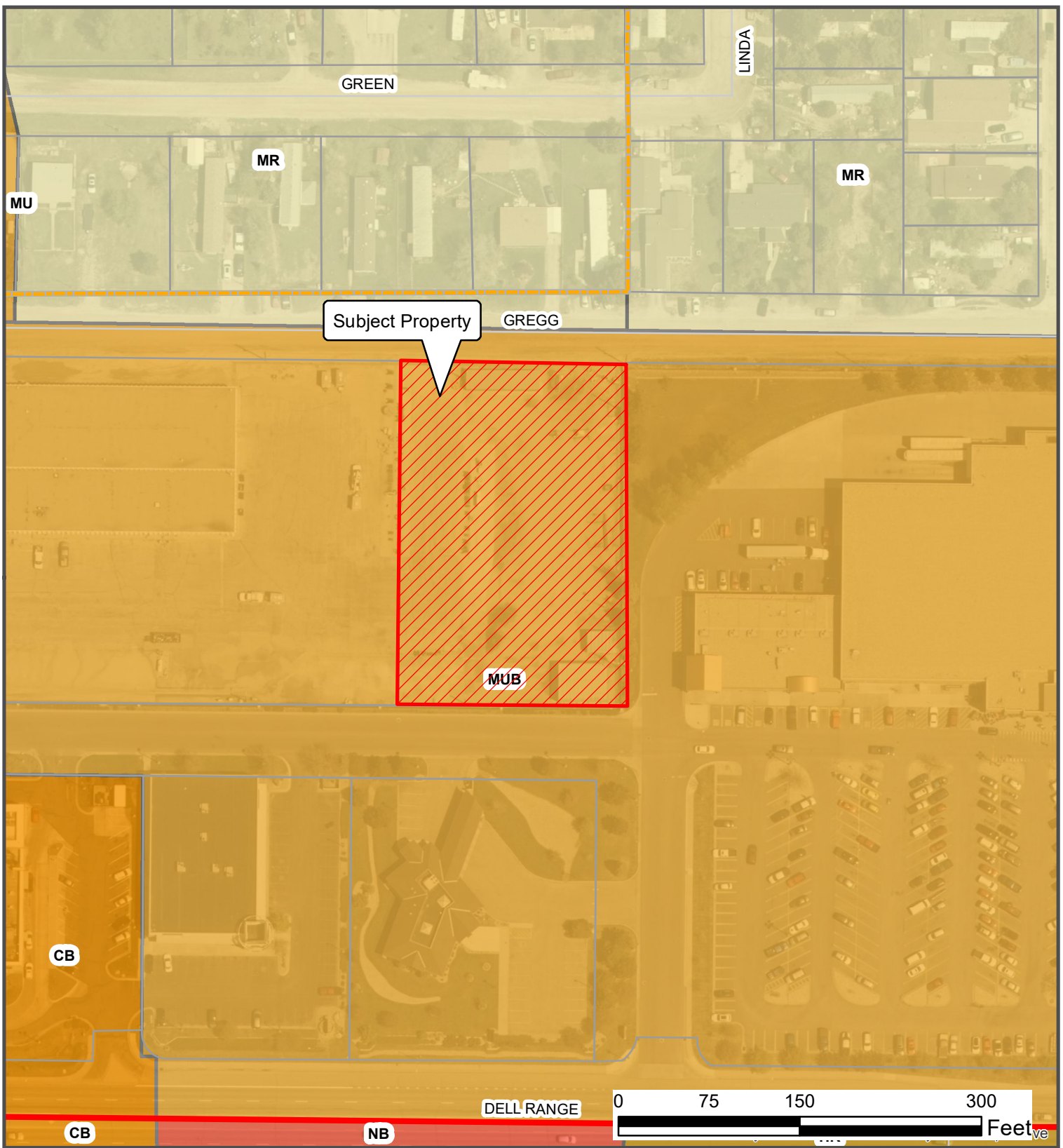
If the Commission acts contrary to staff's recommendation or modifies conditions of approval, the Commission shall cite specific reasons (based on the review criteria) for approval or denial.

STAFF RECOMMENDATION:

Staff recommends approval of the rezoning of the property from MUB to CB.

ATTACHMENTS:

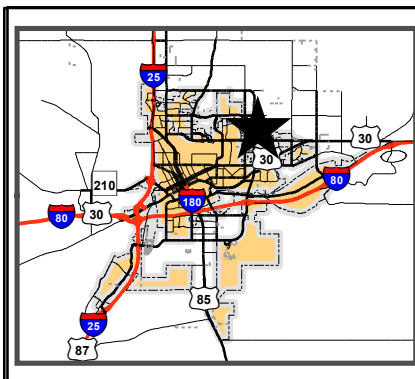
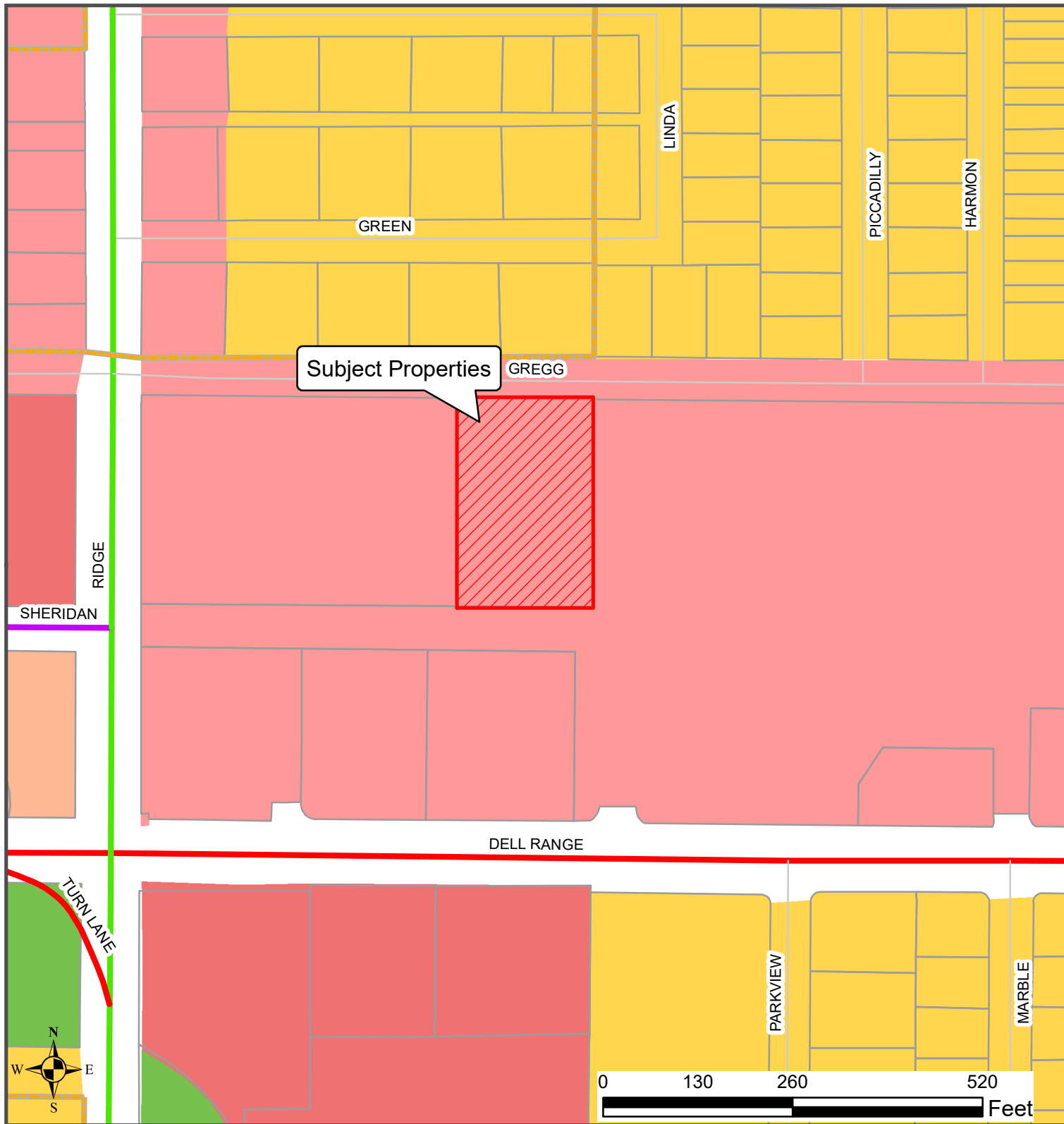
1. Current Zoning Map
2. Future Land Use Map
3. Application
4. Zone Change Map (from applicant)



Attachment 1: Zoning Map PUDC-24-51

This map/data is made possible through the Cheyenne and Laramie County Cooperative GIS (CLCCGIS) Program and is for display purposes only. The CLCCGIS invokes its sovereign and governmental immunity in allowing access to or use of this data, makes no warranties as to the validity, and assumes no liability associated with the use or misuse of this information.

Legend	
	Nov19_CityLimits
	Interstate
	Principal Arterial
	Minor Arterial
	Major Collector
	Minor Collector
	Local
	Private
	Platted not built
	HR / High Density Residential
	MR / Medium Density Residential
	LR / Low Density Residential
	NR-2 / Neighborhood Residential - Med. Density
	NR-3 / Neighborhood Residential - High Density
	AR / Agricultural Residential
	A-1 / Agricultural and Rural Residential
	A-2 / Agricultural
	AG / City Agricultural
	MUR / Mixed Use Residential Emphasis
	CBD / Central Business District
	CB / Community Business
	NB / Neighborhood Business
	MU / Mixed Use - County
	MUB / Mixed Use Business Emphasis
	MUE / Mixed Use Employment Emphasis
	HI / Heavy Industrial
	LI / Light Industrial
	P / Public
	AD / Airport District
	PUD / Planned Unit Development
	X / Exempt



Attachment 2: Land Use Map PUDC-24-51

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Legend

City Limits	Agricultural/Rural	Industrial
Interstate	Rural Residential	Central Business District
Principal Arterial	Urban Transition Residential	Community Business
Minor Arterial	Urban Residential	Public and Quasi-Public
Major Collector	Mixed-Use Residential	Military/Federal
Minor Collector	Mixed-Use Commercial	Open Space and Parks
Local	Mixed-Use Employment	
Private		
Platted not built		
Ownership		



Cheyenne, WY

3/25/2024

PUDC-24-51

Zoning Map Amendment

Status: Active

Submitted On: 3/13/2024

Primary Location

3421 GREGG WAY

Cheyenne, WY 82009

Owner

CHEYENNE REAL ESTATE LLC ET AL

255 STOREY BLVD CHEYENNE, WY 82009

Applicant

 Casey Palma

 307-996-8281

 casey@plandesignwy.com

 1775 Goodnight Trail

Suite 210

Cheyenne, WY 82007

Application

This application has a deadline. The deadline is the second Wednesday of the month.
Application Schedule.

Project Name* 

BP#5906

Proposed Zoning* 

CB Community Business

Review Criteria

The following review criteria are found in the UDC regarding a zoning map amendment. Please acknowledge the proposed zoning map amendment meets each review criterion by checking the box.

The application is in accordance with the development policies and physical patterns identified in the Comprehensive Plan (2.2.1.d.1).*



The application is compatible with nearby property, specifically considering existing zoning, the Comprehensive Plan, and any other official plans and policies created under the guidance of that plan for these areas (2.2.1.d.2).*



The suitability of the subject property for development according to the standards and uses of the existing zoning district, compared to the suitability of the subject property for development according to the standards and uses of the proposed zoning district (2.2.1.d.3).*



The ability of the subject property and surrounding vicinity to be developed according to the Subdivision Standards in Article 4 considering the proposed zoning (2.2.1.d.4).*



The ability of the application to support the Intent and Applicability statements of the proposed zoning district, and achieve the Design Objectives of any specific standards (2.2.1.d.5).*



The ability of all potential future development to meet all applicable standards for development in the proposed zoning district, including other development options in the event that any specific development proposed in association with the application is not executed after approval (2.2.1.d.6).*



The review and recommendations of other reviewing bodies (2.2.1.d.7). (Not applicable at time of application)

Whether the application will harm the public health, safety, or general welfare (2.2.1.d.8).*



Certification

I hereby certify that I am the owner, applicant, or agent named herein and that I have familiarized myself with the rules and regulations with respect to the filing of this application and that the foregoing statements and answers contained on this application and accompanying documents are true and accurate to the best of my knowledge.*

- ✔
Palma Land Planning, LLC by Casey L. Palma, AICP
Mar 12, 2024

Attachments

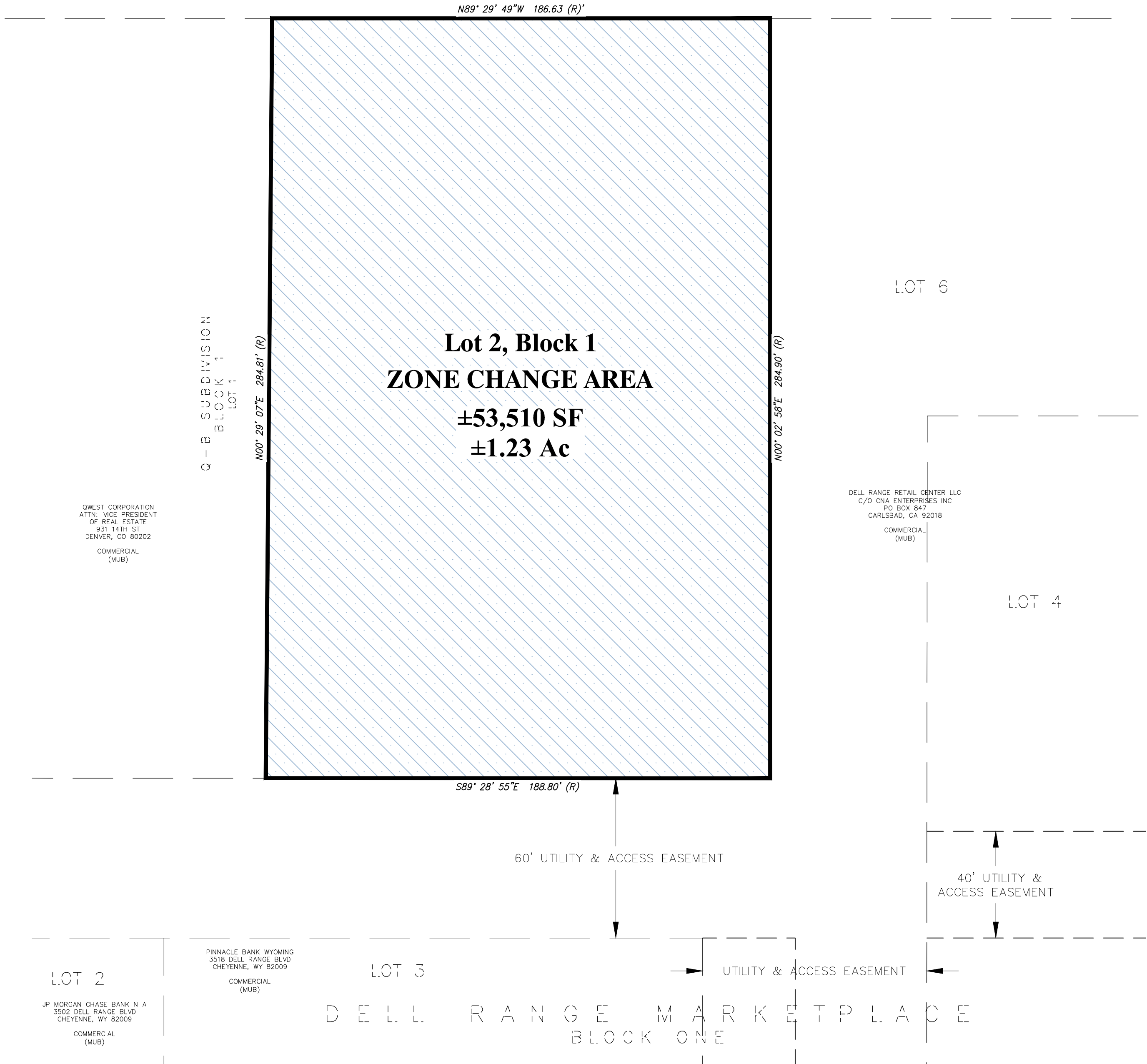
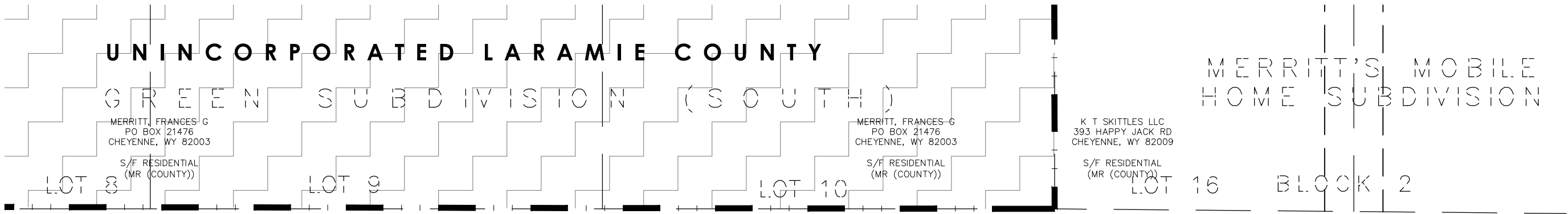
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	Neighbor Notification List BP5906_CLCCGIS_BufferMap.pdf Uploaded by Casey Palma on Mar 13, 2024 at 10:52 AM	REQUIRED
	Photos of Posted Notice 24-51 Posted Notice.pdf Uploaded by Seth Lloyd on Mar 18, 2024 at 11:08 AM	
	Mailed Notice 24-51 Mailed Notice.pdf Uploaded by Seth Lloyd on Mar 19, 2024 at 3:01 PM	
	PUDC-24-51 Schedule Letter PUDC-24-51 Schedule Letter.pdf Uploaded by Seth Lloyd on Mar 19, 2024 at 3:11 PM	
	Letter of Authorization BP5906_LOA-CityAppSIGNED_031324.pdf Uploaded by Casey Palma on Mar 13, 2024 at 4:37 PM	REQUIRED

Proposed Zoning Map
REQUIRED



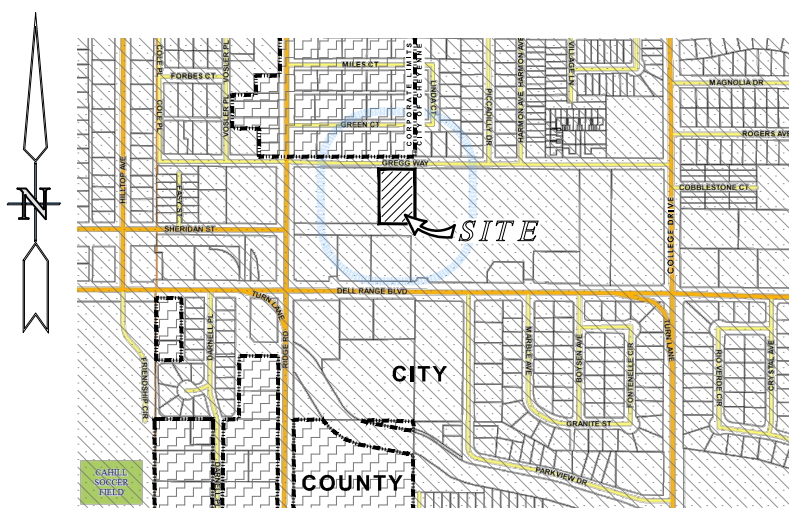
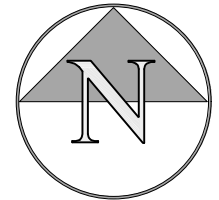
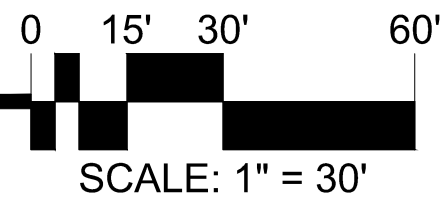
BP5906_ZCmap_031324.pdf

Uploaded by Casey Palma on Mar 13, 2024 at 4:37 PM



Zone Change Map

Lot 2, Block 1, Q-B Subdivision, City of Cheyenne, Laramie County, WY



Vicinity Map

N.T.S.

Property Information

Legal Description:	Lot 2, Block 1, Q-B Subdivision
Property Owner:	Cheyenne Real Estate LLC, ET AL
Property Current Address:	3421 Gregg Way, 82009
Property Requested Address:	TBD - Dell Range Blvd.
Proposed Use:	Automobile Service Repair
Existing Zoning:	MUB - Mixed-Use Business-Emphasis
Proposed Zoning:	CB - Community Business
Future Land Use Plan Designation:	MU-C - Mixed-Use Commercial
Property Area:	±53,510 SF ±1.23 Ac

Note

This map was developed from publicly available record data.

PALMA
Land Planning
SITE & SUBDIVISION DESIGN
ZONING | LANDSCAPE ARCHITECTURE

1775 Goodnight Trail, Suite 210 | Cheyenne, WY 82007
www.PlanDesignWY.com

Prepared: March 2023